# 25SMCV00474 25SMCV00474

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Case Number: 25SMCV00474 Hearing Date: July 1, 2026 Dept: P

Tentative
Ruling

Robin
Martin et al. v. Global Integrity Realty Corporation, Case No. 25SMCV00474

Defendant's
Demurrer to Plaintiff's First Amended Complaint

Hearing
Date: July 1, 2026

Background

Plaintiffs
Robin Martin, Angel Contreras, Jr., Karen Arenas, Lori Ross, and Daisy Munoz allege that Defendant Global Integrity Realty Corporation violated the Investigative Consumer Reporting Agencies Act ("ICRAA") by failing to provide plaintiffs the option to receive a copy of any consumer report Defendant received, failing to notify plaintiffs that a consumer report would be made, and failing to provide a receipt for the fee plaintiffs paid for the reports. (Complaint, ¶ 29-30, 38.)

Plaintiffs
filed the complaint on January 29, 2025. Global Integrity Realty answered the complaint on April 1, 2025.

This case

was initially assigned to Department O in the Santa Monica Courthouse. Plaintiffs made a 170.6 on January 9, 2026, and the case was re-assigned to Department P.

On April 6, 2026, the Court granted Plaintiff's Motion for Leave to Amend to add six causes of action for negligence, violation of the UCL, violation of the CLRA, invasion of privacy, false advertising, and fraud.

On May 21, 2026, Defendant filed this demurrer to Plaintiff's six new causes of action. As of June 29, 2026, Plaintiff has not filed opposition with the Court. On June 23, 2026, Defendant filed a reply. The reply papers reference an opposition, but no opposition was filed with the Court.

Defendant demurs to Plaintiffs second through seventh causes of action on the grounds that the complaint fails to allege that the plaintiffs were damaged by Defendant's alleged conduct. Defendant argues that Plaintiff's claims for false advertising and fraud also fail to allege misrepresentation and intent beyond conclusory statements, and that Plaintiff's claim for violation of the CLRA is barred by its ICAA claims.

Demurrer

In a demurrer proceeding, the defects in the complaint must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully.

(Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Before filing a demurrer, parties must meet and confer in person or by phone. (Code Civ. Proc. § 430.41.)

Discussion

a.
Meet
and Confer

Defendant
attempted to meet and confer with Plaintiffs by regarding this demurrer, but Plaintiffs' counsel did not schedule a call. (Taylor Decl., ¶¶ 4-7.) The parties have not satisfied the meet and confer requirement. Failure to meet and confer is not grounds for overruling a demurrer.

b.
Negligence

A
complaint states a cause of action for negligence where it alleges facts showing (1) the existence of a legal duty owed to plaintiffs to use due care; (2) breach of duty; (3) causation; and (4) damage to plaintiff. (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318; Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917.)

Plaintiff
alleges that "as the direct, legal and proximate result of Defendants herein alleged acts or failures to act, Plaintiffs suffered actual damages in an amount according to proof at trial, which include without limitation damages for emotional distress, the invasion of privacy rights, and the denial of reports that Plaintiffs had a statutory right to obtain, which harmed Plaintiffs rights in those property interests." (Complaint, ¶ 42.) This allegation contains conclusory references to emotional distress damages and property damages. The complaint, however, contains no facts that support

Plaintiffs' conclusory claims. Plaintiffs fail to allege any facts showing how they were emotionally impacted by Defendants' alleged negligence or showing property damage: Plaintiffs are residents at Defendants' properties, and they do not allege that their tenancy was impacted in any way by Defendants' alleged failure to provide Plaintiffs with copies of their background checks. (See Complaint, ¶¶ 5-9.)

Defendants' demurrer to Plaintiffs' negligence claim is SUSTAINED.

c. Violation of the UCL

A complaint states a cause of action for violating Bus. & Prof. Code § 17200 if it states facts showing (1) a business practice; (2) that is unfair, unlawful, or fraudulent; and (3) authorized remedy. ((Bus. & Prof. Code § 17200;¿Paulus v. Bob Lynch Ford, Inc. (2006) 139 Cal.App.4th¿659, 676.¿See also¿People ex rel. Dept. of Motor Vehicles v. Cars 4 Causes¿(2006) 139¿Cal.App.4th¿1006, 1016¿["An 'unlawful' practice¿requires violation of another statute,¿and a business practice may be 'unfair' even if not otherwise proscribed by statute as long as the practice is not expressly authorized by law."] To have standing to sue, a plaintiff must suffer an injury in fact and have lost money. (Bus & Prof. Code § 17204.)

Plaintiffs do not allege an injury-in-fact, nor do they allege that they lost money.

Defendant's demurrer to Plaintiff's UCL claim is SUSTIANED.

d. Violation of the CLRA

The Consumer Legal Remedies Act (CLRA) applies to "unfair or deceptive acts or practices listed in this subdivision undertaken by any person in a transaction intended to result or that results in the sale or lease of goods or services to any consumer." (Civ. Code § 1770.) The CLRA does not apply to leases of real property.

Additionally, the CLRA requires that a plaintiff claiming damages for violation of the CLRA allege that the Plaintiff gave Defendant 30-day notice before filing the complaint. (Civ. Code § 1782(a).) Plaintiffs do not allege that they gave Defendants any notice before filing the complaint.

For both these reasons, Defendant's demurrer to Plaintiff's claim for violation of the CLRA is SUSTAINED.

e. Invasion of Privacy

There is an invasion of privacy where there is (1) a legally protected privacy interest, (2) a reasonable expectation of privacy under the circumstances; and (3) defendant's conduct constitutes a serious invasion of that privacy. (Lewis v. Superior Court (2018) 3 CA.5th 561, 571.)

Plaintiffs allege that "The conduct of Defendants in requesting, preparing, furnishing and receiving reports on Plaintiffs' character, general reputation, personal characteristics, or mode of living, in contrivance of the protections enshrined in the ICRAA, constituted a serious invasion of Plaintiffs' privacy rights under California law and the constitution of this state." (Complaint, ¶ 66.) However, Defendants' alleged failure to comply with ICRAA was that they did not provide a box to check for applicants to indicate if they wanted to receive a copy of their background check. This failure to comply with ICRAA does not allege an invasion of Plaintiffs' privacy because Plaintiffs agreed to disclose the private information to Defendants as part of the lease application.

Defendants' demurrer to Plaintiffs' claim for invasion of privacy is SUSTAINED.

f.

False
Advertising

A
complaint states a claim for false advertising if it states facts showing that the defendant intended to dispose of real or personal property or perform services and publicly disseminated advertising containing a false or misleading statement concerning the property or services or their disposition or performance; defendant knew or should have known that the statement was false or misleading; and defendant disseminated the advertising with the intent not to sell the property or services at the price stated or advertised. (Bus. & Prof. Code § 17500.) A claim for false advertising is not subject to the heightened pleading standard for fraud claims. (In re Tobacco II Cases (2009) 46 Cal.4th 298, 327.) "[W]here, as here, a plaintiff alleges exposure to a long-term advertising campaign, the plaintiff is not required to plead with an unrealistic degree of specificity that the plaintiff relied on particular advertisements or statements." (Id. at p. 328.) However, a plaintiff must describe the advertising that caused their harm. (Ibid. [reliance on advertising campaigns assuring that there was no definitive connection between smoking and various diseases was sufficient.])

Here,
Plaintiff does not describe with any detail what false statements Defendant allegedly made, or any generalized false advertising campaign.

Defendant's
demurrer to Plaintiff's false advertising claim is SUSTAINED.

g.
Fraud

The
well-known elements of a cause of action for fraud or concealment are: (1) a misrepresentation, which includes a concealment or nondisclosure; (2) knowledge of the falsity of the misrepresentation, i.e., scienter; (3) intent to induce reliance on the misrepresentation; (4) justifiable reliance; and (5) resulting damages." (Cadlo v. Owens-Illinois, Inc. (2004) 125 Cal.App.4th 513, 519-520.)

Plaintiffs

alleging fraud must describe, with particularity, the specific statements defendants made that constituted fraud, or facts defendants omitted that constitute alleged fraud. Pleadings must allege facts as to "'how, when, where, to whom, and by what means the representations were tendered.'" (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73. Accord Wald v. Truspeed Motorcars, LLC (2010) 184 Cal.App.4th 378, 393; Morgan v. AT & T Wireless Services, Inc. (2009) 177 Cal.App.4th 1235, 1262. Cf. also Goldrich v. Natural Y Surgical Specialties, Inc. (1994) 25 Cal.App.4th772, 783 ["conclusory allegations offer no facts at all and it is impossible to determine what was said or by whom or in what manner."].)

Plaintiff
does not allege how, when, or by what means Defendant misrepresented the background search process.

Defendant's
Demurrer to Plaintiff's fraud claim is SUSTAINED.

h.
Leave
to Amend

Plaintiff
has not indicated that they will be able to amend the complaint to state claims for negligence, violations of the UCL, the CLRA, invasion of privacy, false advertising, or fraud. All of plaintiff's allegations concern Defendant's alleged failure to provide a box to check for Defendants to provide plaintiffs with a copy of the background check and credit report. These allegations do not indicate with any certainty that Plaintiffs will be able to amend the complaint successfully.

Conclusion

Defendant's
demurrer is SUSTAINED without leave to amend.